

observed in the pleadings filed in this Court, the Court finds that a reasonable multiplier of 1.2 is appropriate here. As a result, it fixes the lodestar as follows:

\$37,569	For successful defense of the Appeal
\$18,408	In total spent researching, drafting, reviewing and revising the Notice of Motion and Motion, Memorandum in Support, Declaration of Daniel A. King, Request for Judicial Notice, and Proposed Order for the instant Motion.

Plaintiff XIAO YI ZHENG and Sanctions Debtor DAVID STURGEON-GARCIA (“Attorney Sturgeon”) are ordered to pay the attorney fees and sanctions in full within 30 calendar days of service of notice of entry of this order.

2. 9:00 AM CASE NUMBER: C23-00652
CASE NAME: LAYLA HAYNES VS. JORGE BELTRAN-AGUIRRE
HEARING ON DEMURRER TO: 2ND AMENDED COMPLAINT
FILED BY: AMERICAN AUTOMOBILE ASSOCIATION OF NORTHERN CALIFORNIA, NEVADA & UTAH
TENTATIVE RULING:

The unopposed demurrer of Defendant American Automobile Association of Northern California, Nevada & Utah (AAA NCNU) to the Plaintiff’s Second Amended Complaint filed December 5, 2025 is **sustained in its entirety** without leave to amend.

3. 9:00 AM CASE NUMBER: C23-01467
CASE NAME: BILLY HOLDMAN VS. STEPHAN LINDSTROM
*HEARING ON MOTION IN RE: LEAVE TO FILE A FIRST AMENDED COMPLAINT FOR DAMAGES
FILED BY: HOLDMAN, BILLY
TENTATIVE RULING:

The unopposed motion of Plaintiffs Billy Holdman and Juanita Moffett, by and

through her administrator, Octavia Holdman for an order granting Plaintiffs leave to file a first amended complaint is granted. Plaintiffs to file their pleading within 15 calendar days of this order.

4. 9:00 AM CASE NUMBER: C23-01843
CASE NAME: ALI KHAN VS. X-THERMA INC.
HEARING ON SUMMARY MOTION RE-SET PER EX PARTE ORDER FILED 2/26/2026
FILED BY:
TENTATIVE RULING:

Before the Court is Plaintiff Ali Khan ("Plaintiff" or "Khan")'s motion for summary adjudication. The motion relates to Plaintiff's Complaint for Breach of Contract as well as Defendant X-Therma, Inc. ("Defendant" or "X-Therma")'s Cross-Complaint for (1) constructive eviction, (2) breach of lease, (3) breach of implied covenant of good faith & fair dealing, (4) declaratory relief, (5) private nuisance, (6) premises liability, (7) unfair business practices in violation of Bus. & Prof. Code § 17200 et seq., (8) enforcement of unilateral rescission of the lease, (9) fraud (active concealment), and (10) negligent misrepresentation.

This motion previously came on for hearing on December 12, 2025 where the Court granted Plaintiff's unopposed motion for summary adjudication. Subsequently, however, X-Therma moved *ex parte* to vacate and set aside that order on the grounds that counsel mistakenly believed the motion had been taken off calendar pending completion of discovery and mediation. The instant motion was then reset for June 12, 2026 at 9:00a.m.

As a threshold issue, the motion purports to move "for an order of summary adjudication for all the causes of action stated in the Defendant's cross-complaint and all the affirmative defenses stated by Defendant to the cause of action for breach of contract stated in Plaintiff's complaint" as well as "an order of summary adjudication entered in favor of the Plaintiff's cause of action for Defendant's breach of contract[.]" (Notice at 1:23-28.)

"A party may move for summary judgment *in an action* or proceeding if it is contended that the action has no merit or that there is no defense to the action or proceeding," or "a party may move for summary adjudication as to one or more causes of action *within an action*." (Code Civ. Proc., § 437c, subds. (a)(1) &